

169. Levy of penalty on non-Government railway.- If a non-Government railway fails to comply with, any requisition made, decision or direction given, by the Central Government, under any of the provisions of this Act, or otherwise contravenes any of the provisions of this Act, it shall be open to the Central Government, by order, to levy a penalty not exceeding two hundred and fifty rupees for every day during which the contravention continues :

Provided that no such penalty shall be levied except after giving a reasonable opportunity to the Non-government railway to make such representation as it deems fit.

170. Recovery of Penalty. – Any penalty imposed by the Central Government under Sec. 169, shall be recoverable by a suit in the district Court having jurisdiction in the place where the head office of the non-Government railway is situated.

171. Section 169 or 170 not to preclude Central Government from taking any other action. – Nothing in Sec. 169 or 170 shall preclude the Central Government from resorting to any other action to compel a non-Government railway to discharge any obligation imposed upon it by or under this Act.

Section 169, 170 and 171 provide for levy of penalty on non-Government railways, mode of recovery of the penalty and that levy of penalty shall not preclude the Central Government from resorting to any other action against such railway.

172. Penalty for intoxication. – If any railway servant is in a state of intoxication while on duty, he shall be punishable with fine which may extend to five hundred rupees and when the performance of any duty in such state is likely to endanger the safety of any person traveling on or being upon a railway, such railway servant shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

Comment

Section 172 provides for punishment for a railway servant for drunkenness on duty.

173. Abandoning train, etc., without authority. – If any railway servant, when on duty, is entrusted with any responsibility connected with the running of a train, or of any other rolling stock from one station or place to another station or place, and he abandons his duty before reaching such station or place without authority or without properly handing over such train or rolling stock to another authorized railway servant, he shall be punishable with imprisonment for a term

which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Comments.

Section 173 provides for punishment for a railway servant on duty for abandoning train without authority.

174. Obstructing running of train, etc. – If any railway servant (whether on duty or otherwise) or any other person obstructs or causes to be obstructed or attempts to obstruct any train or other rolling stock upon a railway, -

- (a) by squatting or picketing or during any rail roko agitation or bandh, ; or
- (b) by keeping without authority any rolling stock on the railway or
- (c) by tampering with, disconnecting or interfering in any other manner with its hose pipe or tampering with signal gear or otherwise, he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to two thousand rupees or with both.

Comment

Section 174 provides for punishment for any person including a railway servant for causing obstruction to trains.

175. Endangering the safety of persons. – If any railway servant for causing obstructions to trains.

- (a) by disobeying any rule made under this Act ; or
- (b) by disobeying any instruction, direction or order under this Act or the rules made there under ; or
- (c) by any rash or negligence act or omission,

he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Section 175 provides for punishment for railway servants on duty for endangering the safety of any person traveling on a railway.

176. Obstructing level crossing. – If any railway servant unnecessarily

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